| Fill in this information to identify the case: | |
|---|---|
| Debtor 1 | New England Motor Freight, Inc. |
| Debtor 2 (Spouse, if filing) | |
| United States Bankruptcy Court for the: | District of New Jersey |
| Case number | 19-12809-JKS |

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US BANKRUPTCY COURT/DNC

USBC DISTRICT OF NEW JERSEY
NEW ENGLAND MOTOR FREIGHT, INC ET AL
CHAPTER 11 CASE NO. 19-12809 (JKS)
CLAIM NUMBER: **00959**

Official Form 410

# Proof of Claim

4141783

04/19

**Read the instructions before filling out this form. This form is for making a claim for payment in a bankruptcy case. Do not use this form to make a request for payment of an administrative expense. Make such a request according to 11 U.S.C. § 503.**

**Filers must leave out or redact** information that is entitled to privacy on this form or on any attached documents. Attach redacted copies of any documents that support the claim, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, judgments, mortgages, and security agreements. **Do not send original documents;** they may be destroyed after scanning. If the documents are not available, explain in an attachment.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

**Fill in all the information about the claim as of the date the case was filed. That date is on the notice of bankruptcy** (Form 309) **that you received.**

## Part 1: Identify the Claim

**1. Who is the current creditor?**

Schneider National Carriers, Inc.
Name of the current creditor (the person or entity to be paid for this claim)

Other names the creditor used with the debtor Schneider Transportation Management

**2. Has this claim been acquired from someone else?**

☑ No
☐ Yes. From whom? _____

**3. Where should notices and payments to the creditor be sent?**
Federal Rule of Bankruptcy Procedure (FRBP) 2002(g)

| **Where should notices to the creditor be sent?** | **Where should payments to the creditor be sent?** (if different) |
|---|---|
| Alexandra Shipley<br>Name | Mark R. Sericati<br>Name |
| 77 W. Wacker Dr., Ste. 4100<br>Number Street | 3101 S. Packerland Drive, U.S. GRB 01.03.01<br>Number Street |
| Chicago IL 60601<br>City State ZIP Code | Green Bay WI 54306<br>City State ZIP Code |
| Contact phone 312-849-8253 | Contact phone 920-592-3882 |
| Contact email ashipley@mcguirewoods.com | Contact email sericatim@schneider.com |

Uniform claim identifier for electronic payments in chapter 13 (if you use one):

_ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _ _

**4. Does this claim amend one already filed?**

☑ No
☐ Yes. Claim number on court claims registry (if known) _____ Filed on _____ MM / DD / YYYY

**5. Do you know if anyone else has filed a proof of claim for this claim?**

☑ No
☐ Yes. Who made the earlier filing? _____



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**Part 2: Give Information About the Claim as of the Date the Case Was Filed**

6. **Do you have any number you use to identify the debtor?**
   - ☑ No
   - ☐ Yes. Last 4 digits of the debtor's account or any number you use to identify the debtor: ____ ____ ____ ____

7. **How much is the claim?** $ 27,074.28 . **Does this amount include interest or other charges?**
   - ☑ No
   - ☐ Yes. Attach statement itemizing interest, fees, expenses, or other charges required by Bankruptcy Rule 3001(c)(2)(A).

8. **What is the basis of the claim?**
   Examples: Goods sold, money loaned, lease, services performed, personal injury or wrongful death, or credit card.
   Attach redacted copies of any documents supporting the claim required by Bankruptcy Rule 3001(c).
   Limit disclosing information that is entitled to privacy, such as health care information.
   Master Broker Transportation Contract. See Exhibit A.

9. **Is all or part of the claim secured?**
   - ☐ No
   - ☑ Yes. The claim is secured by a lien on property.

   **Nature of property:**
   - ☐ Real estate. If the claim is secured by the debtor's principal residence, file a *Mortgage Proof of Claim Attachment* (Official Form 410-A) with this *Proof of Claim.*
   - ☐ Motor vehicle
   - ☑ Other. Describe: Offset. See Exhibit A.

   **Basis for perfection:** _____
   Attach redacted copies of documents, if any, that show evidence of perfection of a security interest (for example, a mortgage, lien, certificate of title, financing statement, or other document that shows the lien has been filed or recorded.)

   **Value of property:** $_____
   **Amount of the claim that is secured:** $_____
   **Amount of the claim that is unsecured:** $_____ (The sum of the secured and unsecured amounts should match the amount in line 7.)

   **Amount necessary to cure any default as of the date of the petition:** $_____

   **Annual Interest Rate** (when case was filed)_____%
   - ☐ Fixed
   - ☐ Variable

10. **Is this claim based on a lease?**
    - ☑ No
    - ☐ Yes. **Amount necessary to cure any default as of the date of the petition.** $_____

11. **Is this claim subject to a right of setoff?**
    - ☐ No
    - ☑ Yes. Identify the property: See Exhibit A.



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12. **Is all or part of the claim entitled to priority under 11 U.S.C. § 507(a)?**

A claim may be partly priority and partly nonpriority. For example, in some categories, the law limits the amount entitled to priority.

☑ No

☐ Yes. *Check one:*

| | Amount entitled to priority |
|---|---|
| ☐ Domestic support obligations (including alimony and child support) under 11 U.S.C. § 507(a)(1)(A) or (a)(1)(B). | $ |
| ☐ Up to $3,025* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use. 11 U.S.C. § 507(a)(7). | $ |
| ☐ Wages, salaries, or commissions (up to $13,650*) earned within 180 days before the bankruptcy petition is filed or the debtor's business ends, whichever is earlier. 11 U.S.C. § 507(a)(4). | $ |
| ☐ Taxes or penalties owed to governmental units. 11 U.S.C. § 507(a)(8). | $ |
| ☐ Contributions to an employee benefit plan. 11 U.S.C. § 507(a)(5). | $ |
| ☐ Other. Specify subsection of 11 U.S.C. § 507(a)(__) that applies. | $ |

* Amounts are subject to adjustment on 4/01/22 and every 3 years after that for cases begun on or after the date of adjustment.

## Part 3: Sign Below

**The person completing this proof of claim must sign and date it. FRBP 9011(b).**

If you file this claim electronically, FRBP 5005(a)(2) authorizes courts to establish local rules specifying what a signature is.

**A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.**

*Check the appropriate box:*

☑ I am the creditor.

☐ I am the creditor's attorney or authorized agent.

☐ I am the trustee, or the debtor, or their authorized agent. Bankruptcy Rule 3004.

☐ I am a guarantor, surety, endorser, or other codebtor. Bankruptcy Rule 3005.

I understand that an authorized signature on this *Proof of Claim* serves as an acknowledgment that when calculating the amount of the claim, the creditor gave the debtor credit for any payments received toward the debt.

I have examined the information in this *Proof of Claim* and have a reasonable belief that the information is true and correct.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on date 06/13/2019
MM / DD / YYYY



Signature

**Print the name of the person who is completing and signing this claim:**

Name: Mark R. Sericati
First name | Middle name | Last name

Title: Associate General Counsel

Company: Schneider National Carriers, Inc.
Identify the corporate servicer as the company if the authorized agent is a servicer.

Address: 3101 S. Packerland Drive, U.S. GRB 01.03.01
Number Street

Green Bay | WI | 54306
City | State | ZIP Code

Contact phone: 920-592-3882 Email: sericatim@schneider.com

**EXHIBIT "A"**
**(Statement of Claim)**

1. This proof of claim ("Claim") is submitted by Schneider National Carriers, Inc. and its direct and indirect subsidiaries, including, without limitation, Schneider Transportation Management ("Schneider National"), against the debtor identified on the foregoing proof of claim form (the "Debtor").

2. Schneider Transportation Management ("Schneider Transportation"), a division of Schneider National, is a licensed transportation broker that brokers its customers' (the "Shippers") freight.

3. Pursuant to that certain Master Broker Transportation Contract effective as of July 5, 2016, by and between Schneider Transportation and the Debtor (the "Broker Contract"), Schneider Transportation contracted for the Debtor to provide freight transportation and related services to the Shippers. Per the Broker Contract, the Debtor billed freight charges for its services to Schneider Transportation and assumed all liability as a common carrier for any losses to, damage to, destruction of, or other issues with respect to, Shippers' cargo. In turn, Schneider Transportation would pay the invoices issued by the Debtor and collect the invoiced amount from the Shippers.

4. As of February 11, 2019 (the "Petition Date"), the Debtor owed to Schneider Transportation $27,074.28 pursuant to the Broker Contract. Also as of the Petition Date, Schneider Transportation owed the Debtor $32,939.36 pursuant to the Broker Contract (the "A/R Amount"). Thus, Schneider National asserts that the Claim is secured by Schneider National's right to offset against the A/R Amount.

5. Per the Court's Order Authorizing the Establishment of Procedures to Compromise and Settle Certain Accounts Receivable and Offset Certain Customer Claims Relating Thereto [Dkt. No. 480] (the "Offset Order"), the Debtor is authorized to compromise and settle the Claim and the A/R Amount in accordance with the A/R Settlement Procedures (as such term is defined in the Offset Order) as set forth therein. Schneider National has attempted to resolve the Claim and A/R Amount with the Debtor, however, as of this date, the Debtor has been unable to do so due to the high volume of claims it is attempting to resolve with other parties. As such, out of an abundance of caution, Schneider National is asserting this secured Claim.

6. A statement reflecting the amounts owed by the Debtor pursuant to the Broker Contract as of the Petition Date is attached hereto as Exhibit B. The Broker Contract contains confidential and/or proprietary information and therefore is not attached hereto. Further information regarding the Broker Contract or this Claim is available upon written request to:

Alexandra Shipley
McGuireWoods LLP
77 W. Wacker Dr., Ste. 4100
Chicago, IL 60601

7. Filing of this Claim does not constitute an election of remedies and cannot be construed as a waiver or release of any claims Schneider National has or may have against any non-debtor third party that may be responsible for all or a portion of the amounts asserted in this Claim, including without limitation the Shippers. Filing this Claim shall not limit or affect any setoff or recoupment rights Schneider National may have with respect to the Claim amount, which rights are fully preserved. Schneider National expressly reserves the right to amend or supplement this Claim, including to assert that all or part of the Claim is secured by a contingent right of setoff. By filing this Claim, Schneider National does not waive (a) its right to have final orders in non-core matters and other matters in which the bankruptcy court lacks constitutional power to enter final orders entered by the district court, (b) its right to trial by jury in any proceedings so triable herein or in any case, controversy, or proceeding related hereto, (c) its right to have the reference withdrawn in any matter subject to mandatory or discretionary withdrawal, or (d) any other rights, claims, actions, defenses, setoffs, or recoupments to which Schneider National may be entitled under agreements, in law, or in equity, all of which rights, claims, action, defenses, setoffs, and recoupments are expressly reserved.

**EXHIBIT B**
**(Statement)**

| NEMF Pro No. | Shipment No. | Ship/BOL Date | Amount Owed |
|---|---|---|---|
| 27491274 | SL204801843 | 10/15/2018 | $9,273.88 |
| 28329726 | SL205375259 | 02/06/2019 | $916.40 |
| 28109992 | SL205240618 | 01/15/2019 | $6,519.16 |
| 27584958 | SL205232933 | 01/10/2019 | $653.42 |
| 26038537 | SL203975197 | 05/07/2018 | $3,030.00 |
| 28435009 | SL204035880 | 05/16/2018 | $2,274.15 |
| 28086722 | SL204308977 | 07/11/2018 | $904.85 |
| 25717372 | SL204798247 | 10/12/2018 | $2,607.75 |
| 26870583 | SL205090777 | 12/07/2018 | $856.96 |
| 28173722 | SL205298734 | 01/23/2019 | $37.71 |
| | **Total** | | **$27,074.28** |

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**Alexandra Shipley**
Direct: 312.849-8253

McGUIREWOODS

ashipley@mcguirewoods.com
Fax: 312.312 698 4537

June 14, 2019

**VIA OVERNIGHT MAIL**

Donlin, Recano & Company, Inc.
Re: New England Motor Freight, Inc., et al.
6201 15th Avenue
Brooklyn, NY 11219

In re: New England Motor Freight, Inc., Case No. 19-12809-JKS
U.S. Bankruptcy Court, District of New Jersey

Dear Sir/Madam:

This firm represents Schneider National Carriers, Inc. and its direct and indirect subsidiaries ("Schneider") in the above-referenced matter. Please find enclosed one original and one copy of Schneider's proof of claim ("POC") for filing.

Please return a file-stamped copy of the POC to me via the enclosed self-addressed Federal Express envelope.

Sincerely,

Alexandra Shipley

Enclosures

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FOLD on this line and place in shipping pouch with **bar code and delivery address** visible

1. Fold the first printed page in half and use as the shipping label.
2. Place the label in a waybill pouch and affix it to your shipment so that the barcode portion of the label can be read and scanned.
3. Keep the second page as a receipt for your records. The receipt contains the terms and conditions of shipping and information useful for tracking your package.

## *Legal Terms and Conditions*

Tendering packages by using this system constitutes your agreement to the service conditions for the transportation of your shipments as found in the applicable FedEx Service Guide, available upon request. FedEx will not be responsible for any claim in excess of the applicable declared value, whether the result of loss, damage, delay, non-delivery, misdelivery, or misinformation, unless you declare a higher value, pay an additional charge, document your actual loss and file a timely claim. Limitations found in the applicable FedEx Service Guide apply. Your right to recover from FedEx for any loss, including intrinsic value of the package, loss of sales, income interest, profit, attorney's fees, costs, and other forms of damage whether direct, incidental, consequential, or special is limited to the greater of 100 USD or the authorized declared value. Recovery cannot exceed actual documented loss. Maximum for items of extraordinary value is 500 USD, e.g. jewelry, precious metals, negotiable instruments and other items listed in our Service Guide. Written claims must be filed within strict time limits, see applicable FedEx Service Guide. FedEx will not be liable for loss or damage to prohibited items in any event or for your acts or omissions, including, without limitation, improper or insufficient packaging, securing, marking or addressing, or the acts or omissions of the recipient or anyone else with an interest in the package. See the applicable FedEx Service Guide for complete terms and conditions. To obtain information regarding how to file a claim or to obtain a Service Guide, please call 1-800-GO-FEDEX (1-800-463-3339).



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